

Rajghat Education Centre Krishna Murti Foundation India v. Purvanchal Vidyut Vitran Nigam Limited

High Court of Judicature at Allahabad · Division Bench · 17 May 2022 · Writ - C No. 7623 of 2022 · **Disposed with liberty to object under para 6.8; merits open**

HEADNOTE

Writ against bills demanding arrears and late payment surcharge disposed without any opinion on merits. The consumer was left at liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided by the licensee after hearing within the next four weeks. Coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Rajghat Education Centre, Krishna Murti Foundation of India, holds connection No. 0508481000 from Purvanchal Vidyut Vitran Nigam Limited, Varanasi. The Executive Engineer, UEDD VIII, demanded arrears and late payment surcharge, including earlier surcharge, by bills dated 24.11.2021, 8.12.2021 and 19.1.2022. The Centre sought certiorari to quash those demands. The petition was passed over on 12.4.2022. On 17.5.2022 counsel for the licensee stated, on instructions, that an objection to the demand could be filed and would be decided in accordance with law within a fixed time.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Objection to arrear and late-payment-surcharge demand

HOLDING

A writ to quash bills of arrears and late payment surcharge may be disposed without any opinion on merits by liberty to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005, before the licensee within four weeks, together with a certified copy of the order. If filed in time, the objection shall be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 2

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The writ challenging the arrear and late-payment-surcharge bills was disposed without a merits finding, relegating the consumer to an objection under para 6.8 to be decided by the licensee in accordance with law after hearing, with coercive recovery stayed in the meantime. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ARREARS AND LATE PAYMENT SURCHARGE DEMANDED BY THE BILLS DATED 24.11.2021, 8.12.2021 AND 19.1.2022 ARE PAYABLE

The Court expressed no opinion on merits and left the objection to be decided by respondent no. 2. ¶ 2